

24STCV27362 24STCV27362

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C07%2F06%2F2026

Source SHA-256: 961f1a4acc0c0130ae652e1d4cec1def1ae3426e133b1525c7e4ec023ab156a5

Case Number: 24STCV27362 Hearing Date: July 6, 2026 Dept: 510

No. 10 – Marisol Jimenez v. Dignity Health, et al.

Plaintiffs' Motion to Disqualify Defense Counsel Law & Brandmeyer LLP, To Take the Motion for Summary Judgment Off-Calendar, and to Continue Trial

Plaintiffs Marisol Jimenez and John Ramirez move to

disqualify Law + Brandmeyer LLP as counsel for Defendants Kendra Duvall and

Dignity Health.[1]

Plaintiffs also move to take the November 5, 2026 hearing on Defendants' motion

for summary judgment off-calendar, and to continue the trial date.

“A

complaining party who files a motion to disqualify is required to have

standing.” (Blue Water Sunset, LLC v. Markowitz (2011) 192 Cal.App.4th

477, 485.) Standing generally requires

either “a present or past attorney-client relationship with the attorney who is

the target of the motion” or that “the lawyer owed a duty of confidentiality to

the complaining party and breached it.” (Ibid.)

Plaintiffs

argue they have standing because they fall into a narrow exception to this general rule—the “manifest-violation” exception. “[I]n California where the ethical breach is manifest and glaring and so infects the litigation in which disqualification is sought that it impacts the moving party's interest in a just and lawful determination of [his or] her claims, a nonclient might meet the standing requirements to bring a motion to disqualify based upon a third party conflict of interest or other ethical violation.” (Kennedy v. Eldridge (2011) 201 Cal.App.4th 1197, 1204 [cleaned up].)

Plaintiffs

argue that the conflict here is “manifest and glaring” on three separate grounds.

First, they argue that Defendants Mohaned Abdelzaher and Kendra Duvall have inherently adverse interests because the complaint alleges they conspired with one another to manufacture false harassment claims against Plaintiff Ramirez. The Court is not convinced. Plaintiffs' mere allegations of conspiracy between these Defendants in a pleading do not transform Defense counsel's representation of them into a manifest ethical violation. Allegations are not evidentiary facts of adverse interests. Even if they were, the parties could have waived, and presumably did waive, any potential conflict.

Second, Plaintiffs argue that the individual

Defendants and Defendant Dignity Health have materially adverse interests

because the complaint alleges Dignity Health is vicariously liable for their

conduct. Again, allegations of vicarious liability are not evidence of an

actual breach of professional duties. There is no evidence that such breach

occurred here, nor that any such breach if it did exist undermines the integrity of the judicial system.

Third, Plaintiffs claim that no informed written

consent has been obtained from any Defendant waiving any conflict. For support,

Plaintiffs cite their counsels' declaration that states "Based on the

correspondence described above and on my personal knowledge of this matter, I

am informed and believe that Law + Brandmeyer LLP has not obtained, and does

not intend to seek, informed written conflict waivers from any defendant."

(Khan Decl., ¶ 9.) This is pure speculation by Plaintiffs' counsel. Defense counsel is not obliged to advise Plaintiff's

counsel of whether it received conflict waivers from its own clients; such

communications between attorney and client are privileged and confidential.

In

reply, Plaintiffs argue that Abdelzaher's recent substitution of new counsel

does not cure the defects identified in their motion because new counsel is

allegedly coordinating litigation strategy with Law + Brandmeyer LLP. For support, Plaintiffs claim that Abdelzaher's new

counsel changed its position on proposed deposition dates after speaking with

Law + Brandmeyer LLP. This argument is also speculative and certainly does not constitute evidence of a manifest and glaring conflict of interest.

Plaintiffs thus do not present evidence that they have the requisite standing to bring this motion. There is no evidence that Defendants' interests are adverse to each other, nor evidence that actual, nonspeculative harm has arisen from any such conflict. Rather, the record indicates a possibility that Plaintiffs made this motion for purely tactical reasons. Law + Brandmeyer LLP have been counsel of record for all three Defendants since the case was filed in 2024. The original complaint contained the same allegations of conspiracy and vicarious liability. Bringing this motion for disqualification at this late juncture supports the conclusion that the motion is strategic.

Further, the Court declines to consider Plaintiffs' additional requests to take Defendants' motion for summary judgment off calendar and continue the trial date. Including these requests in a motion for disqualification constitutes an improper omnibus motion. Plaintiffs must raise these requests by way of properly noticed motions. Nor is there any factual or legal basis presented that warrants such relief.

Disposition

Plaintiffs

Marisol Jimenez and John Ramirez's motion to disqualify defense counsel, to

take the motion for summary judgment off-calendar, and to continue trial, is denied.

[1] At the time this motion was filed,

Law + Brandmeyer LLP also represented

Defendant Mohaned Abdelzaher. However, as of June 9, 2026, Defendant Abdelzaher

is represented by Tina Lee at Reback McAndrews & Blessey LLP.